

24PSCV02496 24PSCV02496

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-15

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Case Number: 24PSCV02496 Hearing Date: July 15, 2026 Dept: O

Tentative Ruling

(1) DEFENDANT, CSCDA COMMUNITY IMPROVEMENT

AUTHORITY'S DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT is SUSTAINED without leave to amend.

(2) DEFENDANT CSCDA COMMUNITY IMPROVEMENT

AUTHORITY'S MOTION TO STRIKE PORTIONS OF PLAINTIFFS' SECOND AMENDED COMPLAINT is GRANTED without leave to amend.

Proposed

orders have been filed.

Background

This is a

habitability case. Plaintiffs SAJJAD SAYYAR ROUDSARI; ARMAGHAN SHALBAFTABAR allege the following against Defendants SIENNA RESIDENCES; CSCDA COMMUNITY IMPROVEMENT AUTHORITY ("CSCDA"); GREYSTAR WORLDWIDE, LLC; GREYSTAR REAL ESTATE PARTNERS, LLC; MONICA MARTINEZ: On August 10, 2022, Plaintiffs moved into their unit but noticed that the unit was infested with insects. Plaintiffs stayed at a hotel that night and moved into another unit the next day; on August 2, 2022, Plaintiffs had numerous bed bug bites across their bodies. On August 20, 2022, Plaintiffs moved out of the apartment.

On August 2,

2024, Plaintiffs filed suit asserting the following causes of action (COAs):

1. Battery
2. Negligence
3. Intentional Infliction of Emotional Distress
4. Statutory Breach of Warranty of Habitability (Civil Code §§1941 and 1941.1)
5. Tortious Breach of Implied Warranty of Habitability
6. Violation of Business & Professions Code §17200 et seq.
7. Breach of Covenant of Quiet Enjoyment
8. Violation of Civil Code §1942.3
9. Violation of Civil Code §1942.4
10. Negligent Violation of Statutory Duty to Maintain Habitable Conditions
11. Breach of Contract
12. Private Nuisance
13. Public Nuisance

On May 12,
2025, Defendants filed the instant demurrer and motion to strike (MTS).

On May 27,
2025, Plaintiffs filed their opposition. That same day, Plaintiffs dismissed the 8th
and 9th COAs.

On June 2,
2025, Defendants filed their reply.

On June 9,
2025, the court continued the hearing for (i) Plaintiff's counsel's failure to
meet and confer and (ii) the court's concerns with the damages in this case not
exceeding the unlimited jurisdiction requirements.

On July 10,
2025, the court sustained in part and overruled in part the demurrer.

On August 11,
2025, Plaintiffs filed their first amended complaint (FAC) for:

1. Battery

2. Negligence

3.
Intentional Infliction of Emotional Distress

4. Statutory
Breach of Warranty of

Habitability
(Civil Code §§1941 and

1941.1)

5. Tortious
Breach of Implied Warranty of

Habitability

6. Breach of
Covenant of Quiet Enjoyment

7. Violation
of Civil Code §1942.3

8. Violation
of Civil Code §1942.4

9. Negligent

Violation of Statutory Duty to Maintain Habitable Conditions

10. Breach of

Contract

11. Private

Nuisance

12. Public

Nuisance

On September

11, 2025, Defendants filed a demurrer to the FAC along with a MTS.

On September

15, 2025, the parties attended an IDC. The court allowed Defendants to file their motions as Plaintiffs' counsel was unprepared for the IDC.

On November,

3, 2025, Defendants filed their discovery motions.

On November

4, 2025, Plaintiffs filed a dismissal of Civil

Code Section 1942.3 and 1942.4

COAs. That

same day, Plaintiffs filed an untimely opposition.

On November

7, 2025, the court continued the hearing on the demurrer x MTS due to Plaintiffs' grossly untimely opposition as they failed to afford Defendants a meaningful opportunity to file a reply.

On January 5,

2026, Defendants filed their reply. That same day, Defendants filed a notice of non-opposition to the discovery motions.

On

January 12, 2026, the court held its hearing on all matters; no tentative ruling was posted. After a lengthy oral hearing, the court took the matters under submission; the court issued its final ruling on the matters on 1/26/26. As noted in the 1/26/26 final ruling, “[a]ny future untimely filings by Plaintiff will not be reviewed by this court.”

On February 26, 2026,[1] Plaintiffs filed a second amended complaint (SAC) against Defendants SIENNA RESIDENCES; CSCDA COMMUNITY IMPROVEMENT AUTHORITY; GREYSTAR WORLDWIDE, LLC; GREYSTAR REAL ESTATE PARTNERS, LLC; and MONICA MARTINEZ; for:

1. Negligence

2.

Intentional Infliction of Emotional Distress

3. Statutory

Breach of Warranty of Habitability (Civil Code §§1941 and 1941.1)

4. Tortious

Breach of Implied Warranty of Habitability

5. Breach of

Covenant of Quiet Enjoyment

6. Negligent

Violation of Statutory Duty to Maintain Habitable Conditions

7. Breach of

Contract

8. Private

Nuisance

9. Public

Nuisance

On

March 30, 2026, DEFENDANTS, GREYSTAR CALIFORNIA, INC. (Erroneously sued as WORLDWIDE LLC., and GREYSTAR REAL ESTATE PARTNERS, LLC.) AND MONICA MARTINEZ’S

(collectively, “Defendants”) filed their ANSWER TO PLAINTIFF’S SAC. That same day, a motion to strike was filed on the grounds that Plaintiffs have failed to state facts sufficient to

support

a claim for punitive damages and failed to state entitlement to attorneys’ fees, and irrelevant references to inapplicable code sections.

On

June 16, 2026, the instant demurrer and motion to strike (MTS) were filed.

On

June 22, 2026, after hearing oral argument on the March 20, 2026 motions, the court issued its final ruling granting the MTS without leave to amend.

On

July 8, 2026, CSCDA filed a ‘NOTICE OF NON-OPPOSITION TO DEMURRER AND MOTION TO STRIKE SECOND AMENDED COMPLAINT’ indicating that they have not “received any opposition within the statutory time.”

Discussion[2]

Moving

Defendant CSCDA demurs to the 3rd-6th and 8-9th COAs on the grounds that all fail to state facts sufficient to constitute the COA and are otherwise uncertain. (Code Civ. Proc. §§ 430.10(e), (f).)

For reasons

to be discussed, and absent a timely opposition, the court sustains the demurrer without leave to amend and grants the MTS without leave to amend.

As for the 3rd, 4th, and 9th COAs, CSCDA avers the claims are duplicative as they all sound in basic negligence, and Plaintiffs have already stated a cause of action for negligence and two separate causes of action for breach of the warranty of habitability. Thus, based on these facts, the SAC thus alleges only one cause of action. (Demurrer p. 7, citing *Van Zyl v. Spiegelberg* (1969) 2 Cal.App.3d 367-372 [“Accordingly, what plaintiff seeks is to recover in damages under the same state of facts but under different theories of recovery, that is, private nuisance and negligence. In such a case there is but one cause of action.”].) Thus, the court sustains the demurrer as to the foregoing COA.

As for the 5th COA for Breach of Covenant of Quiet Enjoyment, that also fails to plead sufficient facts. As stated in the demurrer, this covenant of quiet enjoyment is not broken until there has been an actual or constructive eviction. (Demurrer p. 7, citing *Clark v. Spiegel* (1971) 22 Cal.App.3d 74, 80; *Slater v. Conti* (1959) 171 Cal.App.2d 582, 585.) Here, however, moving Defendant argues certain facts are lacking regarding specifying the manner or length of dispossession.[3] Thus, the court sustains the demurrer as to this COA.

As for the 6th COA for negligent violation of statutory duty to maintain habitable condition, moving Defendant avers that COA does not exist. In the alternative, they argue that this COA is duplicative of the Tortious Breach of Implied Warranty of Habitability, Statutory Breach of Warranty of Habitability, and for negligence. For reasons iterated above, thus, the court sustains the demurrer as to this COA.

As for the 9th COA for public nuisance, moving Defendant argues that Plaintiffs allege that they were bitten by bedbugs in an apartment unit. But a public nuisance is “one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code § 3480). Here, Defendant alleges that Plaintiffs do not allege a public nuisance which affects an entire community or neighborhood.[4] Thus, the court sustains the demurrer as to this COA.

As for leave to amend, “In our adversarial system of adjudication, we follow the principle of party presentation. [] The parties frame the issues for decision while the court serves as ‘neutral arbiter of matters the parties present. [] In other words, courts call balls and strikes’; they don’t get a turn at bat. [].” (*Clark v. Sweeney*, 607 U.S. ____ (2025).) This means that while the court has reviewed the cited authority to ensure correct statements of law and considered the moving party’s general arguments, absent an opposition, this court would transgress the party-presentation principle by denying relief on claims never advanced by Plaintiffs. That canon guides this court’s decision to deny leave to amend. But not only is the court denying leave to amend as Plaintiffs have (again) failed to file an opposition to show what amendments could cure the defects, but the court has previously given leave to amend yet Plaintiffs failed to make meaningful amendments. To the extent that Plaintiffs will attempt to make oral argument, the court directs

them to the court's 6/22/26 final ruling.

As for the MTS, the motion is made on the grounds that Plaintiffs have failed to state facts sufficient to support a claim for punitive damages and failed to state entitlement to attorneys' fees, and irrelevant references to inapplicable code sections. Here, as Plaintiffs' SAC is couched in boilerplate language and no clear and concise allegations in the SAC of an intent by any specific moving Defendant to injure Plaintiffs during their one-week stay at the subject property, the court strikes any references for punitive damages. As for attorney fees, Plaintiffs have failed to pled any statutory or contractual basis for recovering attorneys' fees.[5] Thus, the court strikes the MTS and leave to amend is denied for reasons stated above.

Conclusion

Based on the foregoing, the demurrer is sustained without leave to amend and the MTS is granted without leave to amend.

[1]

The SAC was untimely was filed. The court's 1/26/26 order required a SAC be filed "by no later than end of business on February 25, 2026."

[2]

It appears Plaintiffs' counsel failed to respond to meet and confer efforts.

[3] To the extent that Plaintiffs allege that the premises were uninhabitable from August 11, 2022, until Plaintiffs were forced to vacate on or about August 20, 2022 such that they were "constructively evicted from the Subject Apartment within days of moving in," they have not filed an opposition to brief whether that allegation is sufficient.

[4] To the extent that Plaintiffs allegation that they are informed and believe that the bed bugs affected other tenants, guests, and invitees, they have not filed an opposition to brief whether such allegation is sufficient.

[5] Plaintiffs cite to Civil Code §1940.35 and Civil Code §51.9 in their SAC as

the basis to recover attorney fees. It is unclear how those statutes are relevant when the latter deals with sexual harassment and the former statute involves a landlord attempting to evict a tenant based upon their immigrant/citizenship status.